

26STCV02569 26STCV02569

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C09%2F17%2F2026

Source SHA-256: e10b0a4898efbb6d3c51494e89279f01dbab39fca03a5ef2f2093a2d06616d1b

Case Number: 26STCV02569 Hearing Date: September 17, 2026 Dept: 510

No.

10 – Heather Harrison v. James

Robinson

Personal

Representatives' Motion to Dismiss and Plaintiff Heather Harrison's Motion to Disqualify

Michael

Robinson and Michael Stanley, personal representatives of the estate of Defendant James Robinson, move to dismiss this action for lack of jurisdiction due to the death of Defendant. In addition, Plaintiff Heather Harrison moves to disqualify counsel of record for Defendant's estate.

Defendant,

through the personal representatives of his estate, filed the motion to dismiss on April 10, 2026. Plaintiff filed her motion to disqualify counsel on May 1, 2026. However, on May 12, 2026, the Court stayed this case in its entirety while Plaintiff filed a creditor's claim in the probate case that was opened in Maryland. Plaintiff represents in her opposition to the motion to dismiss that her deadline to file the creditor's claim is August 15, 2026. The claim must be rejected in whole or in part before she may apply to this Court to substitute the personal representative. (See Prob Code, § 9370(a).)

This stay is still in effect. Counsel for the personal representatives indicates that on September 15, 2026, the Estate disallowed Plaintiff's claim in the Maryland probate court. The time for Plaintiff to substitute the estate representatives for the deceased defendant

has thus begun to run. The Court will thus extend the stay for 91 days, and will continue the hearing on the two pending motions to December 15, 2026 at 8:30 am.